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April 8, 2025

ENGROSSED HOUSE
BILL NO. 2364

By: Hill, Stark, Schreiber,
Munson, and Deck of the
House

and

Daniels and Goodwin of the
Senate

An Act relating to corrections; amending 57 O.S. 2021, Section 513.3, as amended by Section 1, Chapter 64, O.S.L. 2022 (57 O.S. Supp. 2024, Section 513.3), which relates to the Sarah Stitt Act; modifying responsible agency; requiring inmates be assisted in receiving certain driver license before release; making certain prioritization; requiring certain documentation be gathered; authorizing the certain use of funds; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 57 O.S. 2021, Section 513.3, as amended by Section 1, Chapter 64, O.S.L. 2022 (57 O.S. Supp. 2024, Section 513.3), is amended to read as follows:

Section 513.3. A. When any inmate shall be discharged from an institution of the Department of Corrections and the intended residence designated by the inmate is within this state, the Department of Corrections shall provide the inmate with relevant

1 documentation to assist the inmate in obtaining post-release
2 employment and shall coordinate with ~~the Department of Public Safety~~
3 Service Oklahoma to provide a REAL ID Noncompliant Driver License or
4 a REAL ID Noncompliant Identification Card if the inmate does not
5 have a current state-issued identification card or driver license.
6 The Department of Corrections shall first assist the inmate in
7 obtaining a REAL ID Noncompliant Driver License. If efforts to
8 assist the inmate in obtaining a REAL ID Noncompliant Driver License
9 fail, the Department of Corrections shall assist the inmate in
10 obtaining a REAL ID Noncompliant Identification Card.

11 B. 1. Within nine (9) months prior to the release of an inmate
12 from custody, the Department of Corrections shall identify whether
13 the inmate has a current form of state identification and begin the
14 process of gathering the documentation required for the issuance of
15 a REAL ID Noncompliant Driver License or, if the inmate is unable to
16 obtain a REAL ID Noncompliant Driver License, a REAL ID Noncompliant
17 Identification Card pursuant to Section 6-105.3 of Title 47 of the
18 Oklahoma Statutes. If an inmate has any valid form of a state-
19 issued identification card or driver license, the inmate may avail
20 himself or herself of the provisions of this section.

21 2. The Department of Corrections may utilize any funds
22 available to cover the costs associated with the implementation and
23 administration of this section and the purchase of REAL ID
24 Noncompliant Driver Licenses or REAL ID Noncompliant Identification

1 Cards, including, but not limited to, inmate trust funds, existing
2 funds of the Department of Corrections and donations.

3 3. The provisions of this section shall apply only to inmates
4 who may receive a state-issued identification card pursuant to
5 Section 1550.42 of Title 21 of the Oklahoma Statutes.

6 C. For purposes of assisting an inmate in obtaining post-
7 release employment, the Department of Corrections shall provide the
8 inmate with the following documentation:

9 1. A copy of the vocational training record of the inmate, if
10 applicable;

11 2. A copy of the work record of the inmate, if applicable;

12 3. A certified copy of the birth certificate of the inmate, if
13 obtainable;

14 4. A Social Security card or a replacement Social Security card
15 of the inmate, if obtainable;

16 5. A resume that includes any trade learned by the inmate and
17 the proficiency at that trade by the inmate; and

18 6. Documentation that the inmate has completed a practice job
19 interview.

20 In addition, the Department shall notify the inmate if he or she
21 is eligible to apply for a license from a state entity charged with
22 oversight of an occupational license or certification.

1 D. The following categories of inmates are not required to
2 complete resumes or practice job interviews prior to their release
3 from incarceration:

4 1. Inmates sixty-five (65) years of age or older;

5 2. Inmates releasing to medical parole or discharging from a
6 prison infirmary setting;

7 3. Inmates releasing from a Department of Corrections Mental
8 Health Unit;

9 4. Inmates releasing to the custody of another jurisdiction on
10 a warrant or detainer;

11 5. Inmates returning to community supervision from an
12 intermediate revocation facility; and

13 6. Inmates that the Department determines would be physically
14 or mentally unable to return to the workforce upon release from
15 incarceration.

16 E. The Department of Corrections is authorized to promulgate
17 rules and procedures to implement the provisions of this section.

18 SECTION 2. This act shall become effective November 1, 2025.

19 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
20 April 8, 2025 - DO PASS
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